

Punit Kumar Srivastava v. State of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 9 April 2025 · 2025:AHC:51534-DB · WRIT - C No. - 3081 of 2025 · **Writ disposed of: reconnect on Rs.75,000 deposit; Clause 6.5 objection to be decided.**

HEADNOTE

On a writ seeking restoration, meter readings for 2015–2019, and consideration of one-time settlement after disconnection, the Court directed reconnection on deposit of Rs.75,000 within seven days and relegated the billing dispute to an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within six weeks, with the deposit adjustable against dues as determined.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected. He received a notice dated 14 December 2024 and approached the High Court under Article 226 seeking a mandamus to consider him for one-time settlement pursuant to that notice, to supply meter readings for January 2015 to January 2019 on the basis of which bills had been raised without those readings being provided, and to restore supply immediately, stating that he was living in darkness and his children were studying.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

restoration-on-deposit-and-clause-6.5-objection

HOLDING

If the petitioner deposits Rs.75,000 with the Electricity Department within seven days, the Department shall reconnect supply forthwith. The petitioner shall file an application/objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within seven days; if so filed, the authority shall decide it in accordance with law within six weeks after hearing. After the Clause 6.5 order the petitioner shall deposit dues as determined (the Rs.75,000 to be adjusted); on default the Department may proceed in accordance with law. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a writ seeking restoration, meter readings for 2015–2019, and consideration of one-time settlement after disconnection, the Court directed reconnection on deposit of Rs.75,000 within seven days and relegated the billing dispute to an objection under Clause 6.5 of the U.P.. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF BILLS FOR JANUARY 2015–JANUARY 2019, PRODUCTION OF THOSE METER READINGS, AND ENTITLEMENT TO ONE-TIME SETTLEMENT UNDER THE NOTICE DATED 14.12.2024

Left to the Clause 6.5 authority to decide in accordance with law after hearing. ¶ 3